

25TRCV01432 25TRCV01432

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Case Number: 25TRCV01432 Hearing Date: September 16, 2026 Dept: B

Moving

Parties: Plaintiffs John Doe and Jane Doe

Responding

Party: Defendant G2 Secure Staff LLC

(1)

Motion

for Reconsideration of Order Denying Pseudonymity and Renewed Motion to Proceed
by Pseudonym

(2)

Motion

to Quash Service of Summons, to Strike Demurrer as Void Ab Initio, and for
Sanctions for Lack of Good Faith

The Court considered the moving and opposition papers.

RULING

See Order below.

BACKGROUND

On May

6, 2025, plaintiff John Doe and Jane Doe (self-represented) filed a complaint
against G2 Secure Staff LLC for (1) negligence, (2) assault and battery, (3)
IIED, (4) negligence per se, (5) violation of ADA, (6) dependent adult abuse

and endangerment, (7) tortious interference with prospective economic advantage, and (8) failure to protect a vulnerable

individual. The complaint alleges that on May 6, 2023, plaintiffs arrived at LAX. Defendant was contractually responsible to provide mobility support. Defendant's employee abandoned Jane Doe outside the terminal in cold conditions. John Doe searched for assistance. When John Doe asked whether an attendant would help, the attendant said, "no." John Doe took a photo of the exchange. The attendant became enraged, chased John Doe, and shoved him down an escalator. Jane Doe remained alone in the cold and her surgical site bled and partially reopened.

On July 14, 2025, defense counsel filed a declaration in support of a thirty-day extension to file a responsive pleading.

On August 28, 2025, at the CMC, defense counsel indicated that defendant would file a responsive pleading within fifteen days.

On September 12, 2025, plaintiffs filed the herein motion to strike.

On September 15, 2025, defendant filed the herein demurrer to the fifth cause of action for violation of ADA and sixth cause of action for dependent adult abuse.

On October 7, 2025, the Court denied plaintiffs' motion to strike.

On March 18, 2026, the Court denied plaintiffs' motion to proceed under pseudonym, for protective order, and to seal exhibits.

On March 26, 2026, plaintiffs filed the herein motions to quash and for reconsideration and renewed motion to proceed by pseudonym.

On April 22, 2026, the Court sustained with twenty days leave to amend defendant G2 Secure Staff, LLC's demurrer to the fifth and sixth causes of action.

On May
22, 2026, plaintiffs filed a FAC.

LEGAL AUTHORITY

Reconsideration

Under

CCP §1008(a), “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.”

Further,

“the party seeking reconsideration must provide not only new evidence but also a satisfactory explanation for the failure to produce that evidence at an earlier time.” *Glade v. Glade* (1995) 38 Cal. App. 4th 1441, 1457. A motion for reconsideration was properly denied where based on evidence that could have been presented in connection with the original motion. *Morris v. AGFA Corp.* (2006) 144 Cal. App. 4th 1452, 1460. The burden under §1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” *New York Times Co. v. Superior Court* (2005) 135 Cal. App. 4th 206, 212-213.

As

stated by the court in *Gilbert v. AC Transit* (1995) 32 Cal. App. 4th 1494, CCP §1008 governs reconsideration of court orders whether initiated by a party or the court itself. “It is the exclusive means for modifying, amending or revoking an order. That limitation is expressly jurisdictional.”

Id. at 1499.

CCP

§128(a) states, “Every court shall have the power to do all of the following: . . . (8) To amend and control its process and orders so as to make them conform to law and justice. . . .”

DISCUSSION

Motion for
Reconsideration

Under CCP §1008(a), plaintiffs request that the Court reconsider and vacate its prior order denying pseudonymity and grant plaintiffs leave to proceed by pseudonym in all filings and proceedings. Plaintiffs also request that the Court seal or redact any prior filings that disclosed plaintiffs’ true identities.

Plaintiffs assert that they are active Safe at Home participants and that CCP §367.3 authorizes pseudonymity for any protected person. Citing to plaintiffs’ request for judicial notice, plaintiffs contend that there is “overwhelming new evidence of escalated retaliation” and that defense counsel already knows plaintiffs’ true identities so there is no prejudice to defendant.

In opposition, defendant argues that the motion is devoid of new or different factual evidence and any new legal authority. Defendant also asserts that plaintiffs still have not complied with the disclosure requirements in CCP §367.3(b)(1). Defendant states that it has no means to contact plaintiffs other than by certified mail at the provided “Safe at Home address.” Defendant argues that allowing plaintiffs to shield their identities from defendant violates defendant’s constitutional right to due process and prejudices its ability to defend itself.

The Court rules as follows: Under CCP §367.3(a)(3), “‘Protected person’ means a person who is an active participant in the address confidentiality

program created pursuant to" and commencing with Gov. Code §6205. Under CCP §367.3 (b)(1), "[a] protected person who is a party in a civil proceeding may proceed

using a pseudonym, either John Doe, Jane Doe, or Doe, for the true name of the protected person and may exclude or redact from all pleadings and documents filed in the action other identifying characteristics of the protected person. A protected person who proceeds using a pseudonym as provided in this section shall file with the court and serve upon all other parties to the proceeding a confidential information form for this purpose that includes the protected person's name and other identifying characteristics being excluded or redacted. The court shall keep the confidential information form confidential." Plaintiffs are participants in an address confidentiality program established under Gov. Code §6205.

In light of the above statute, the motion is

GRANTED. The Court notes that

plaintiffs' prior request cited to CCP §367.5 as the statutory basis for their request, but that statute had already been repealed. The Court reconsiders the order dated March 18, 2026, which denied plaintiffs' request to proceed using a pseudonym. The Court vacates its March 18, 2026 order.

The Court finds that plaintiffs may proceed using pseudonyms John Doe and Jane Doe. Plaintiffs are ordered to comply with CCP §367.3(b)(1) by filing with the Court and serving on defendant a "confidential information form."

Motion to Quash

Plaintiffs

request that the Court quash all service of any and all filings, pleadings, papers, and documents by defendant on the grounds that defendant failed to comply with the mandatory service protections under the Safe at Home program. Plaintiffs also request that the Court strike defendant's demurrer as an "unauthorized and void pleading ab initio" pursuant to CCP §436 because it was filed while G2 Secure Staff was inactive/suspended and counsel did not make a proper special appearance. Plaintiffs further request that the Court impose sanctions against defendant and its counsel of record in the amount of \$5000 pursuant to CCP §128.5.

In

opposition, defendant argues that there is nothing to quash, including any summons or cross-complaint. Defendant also asserts that the motion does not outline what they allege the "mandatory

service procedures” to be or provide evidence or argument as to how defendant has allegedly failed to comply with such procedures. Defendant states that defense counsel has served all filings on plaintiffs to the provided address via certified mail. Defendant further notes that the Court has already ruled on the demurrer.

The

Court finds that there is no ground to quash.

Plaintiffs present no evidence that defendant has failed to comply with

the service requirements under the Safe at Home program. The Court has ruled on the demurrer. Sanctions are not warranted.

The

motion is DENIED.

ORDER

The motion for reconsideration is GRANTED. The March 18, 2026 order is VACATED. Plaintiffs may proceed using pseudonyms. Plaintiffs are ordered to comply with CCP

§367.3(b)(1) by filing with the Court and serving on defendant a “confidential information form.”

The motion to quash is

DENIED.

Defendant is ordered to

give notice of ruling.